

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Julia Vittore	Team: Squad #15	CCRB Case #: 202208600	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Thursday, 12/15/2022 6:00 AM, Thursday, 12/15/2022 5:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 6/15/2024	Precinct: 120		
Date/Time CV Reported Fri, 12/16/2022 5:36 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 12/16/2022 5:36 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT DS Angel Melendez	03315	937088	NBSI MAJOR
2. DT3 Brittany Cardinale	01546	961669	NARC SI
3. DT3 Richard Browne	04237	950113	NBSI MAJOR
4. DI Scott Weisberg	00000	907562	DBSI
5. An Officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 John Weiburg	07841	947598	NBSI MAJOR
2. DT3 Philip Vaccarino	04885	943905	NBSI MAJOR
3. DT1 Raymond Wittick	00710	905308	NBSI MAJOR
4. SGT Matthew Kokoruda	05239	944705	ESU

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Richard Browne	Abuse: Detective Richard Browne entered § 87(2)(b) in Staten Island.	A . Within NYPD Guidelines
B . SGT DS Angel Melendez	Discourtesy: Sergeant Angel Melendez spoke discourteously to § 87(2)(b)	B . Unable to Determine
C . SGT DS Angel Melendez	Off. Language: Sergeant Angel Melendez made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	C . Unable to Determine
D . SGT DS Angel Melendez	Abuse: Sergeant Angel Melendez threatened § 87(2)(b) with the use of force.	D . Unable to Determine
E . DT3 Richard Browne	Abuse: Detective Richard Browne sexually humiliated § 87(2)(b) through failure to cover.	E . Unable to Determine
F . DT3 Brittany Cardinale	Abuse: Detective Brittany Cardinale sexually humiliated § 87(2)(b) through failure to cover.	F . Unable to Determine
G . DT3 Richard Browne	Abuse: Detective Richard Browne refused to show the search warrant to § 87(2)(b)	G . Unable to Determine
H . DT3 Richard Browne	Abuse: Detective Richard Browne refused to show the search warrant to § 87(2)(b)	H . Unable to Determine
I . DI Scott Weisberg	Abuse: Deputy Inspector Scott Weisberg refused to show the search warrant to § 87(2)(b)	I . Unable to Determine

Officer(s)	Allegation	Investigator Recommendation
J . An Officer	Abuse: An officer did not process § 87(2)(b) s complaint regarding an officer.	J . Officer(s) Unidentified

Case Summary

On December 16, 2022, § 87(2)(b) filed this complaint via the CCRB website.

On December 15, 2022, at approximately 6:00 a.m., Detective Richard Browne, of Staten Island Narcotics, executed a search warrant at § 87(2)(b) in Staten Island (**Allegation A: Abuse of Authority – Entry of Premises, Within NYPD Guidelines**). Upon entering the residence, Sergeant Angel Melendez, of Staten Island Narcotics, allegedly said to § 87(2)(b) “Shut the fuck up! Get your fucking dogs, bitch, before I punch you in your face!” (**Allegation B: Discourtesy – Word, Unable to Determine; Allegation C: Offensive Language – Gender, Unable to Determine; Allegation D: Abuse of Authority – Threat of Force, Unable to Determine**). Detective Browne and Detective Brittany Cardinale allegedly sexually humiliated § 87(2)(b) and § 87(2)(b) through failure to cover (**Allegations E and F: Sexual Misconduct – Humiliation, Unable to Determine**). Detective Browne allegedly refused to show a copy of the search warrant to § 87(2)(b) and § 87(2)(b) (**Allegations G and H: Abuse of Authority: Refusal to Show Search Warrant, Unable to Determine**). Deputy Inspector Scott Weisberg, of the 120th Precinct Staten Island Detective Squad, also allegedly refused to show a copy of the search warrant to § 87(2)(b) (**Allegation I: Abuse of Authority: Refusal to Show Search Warrant, Unable to Determine**). At approximately 5:00 p.m., at the 120th Precinct stationhouse, an officer allegedly refused to process § 87(2)(b)’s complaint against officers (**Allegation J: Abuse of Authority – Refusal to Process Civilian Complaint, Unable to Determine**). § 87(2)(b) was arrested for § 87(2)(b) as a result of this incident (Board Review 01). There were no other arrests made or summonses issued.

The officers involved in the incident were not equipped with body-worn cameras and the stationhouse video had expired by the time it was requested. As such, the CCRB did not obtain any video evidence for this investigation.

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Richard Browne entered § 87(2)(b) in Staten Island.

Allegation (B) Discourtesy: Sergeant Angel Melendez spoke discourteously to § 87(2)(b).

Allegation (C) Offensive Language: Sergeant Angel Melendez made remarks to § 87(2)(b) based upon the gender of § 87(2)(b).

Allegation (D) Abuse of Authority: Sergeant Angel Melendez threatened § 87(2)(b) with the use of force.

Allegation (E) Abuse of Authority: Detective Richard Browne sexually humiliated § 87(2)(b) through failure to cover.

Allegation (F) Abuse of Authority: Detective Brittany Cardinale sexually humiliated § 87(2)(b) through failure to cover.

On January 10, 2023, § 87(2)(b) was interviewed by the CCRB (Board Review 02 and 03). On January 24, 2023, § 87(2)(b) was interviewed by the CCRB (Board Review 04 and 05). On March 8, 2023, § 87(2)(b) was interviewed by the CCRB (Board Review 06 and 07). On July 12, 2023, Detective John Weiburg was interviewed by the CCRB (Board Review 08 and 09). On August 9, 2023, Detective Cardinale was interviewed by the CCRB (Board Review 10 and 11). On August 24, 2023, Sergeant Melendez was interviewed by the CCRB (Board Review 12 and 13). On September 13, 2023, Detective Phillip Vaccarino was interviewed by the CCRB (Board Review 14 and 15). On September 26, 2023, Detective Browne was interviewed by the CCRB (Board Review 16 and 17). On October 10, 2023, Detective Raymond Wittick was interviewed by the CCRB (Board Review 18 and 19). On October 30, 2023, Deputy Inspector Weisberg was interviewed by the CCRB (Board Review 20 and 21). On December 18, 2023, Sergeant Matthew Kokoruda was interviewed by the CCRB (Board Review 22 and 23). The investigation was unable to obtain a statement from § 87(2)(b)'s husband, § 87(2)(b) (Board Review 24).

It is undisputed that officers entered § 87(2)(b) in Staten Island.

§ 87(2)(b) (Board Review 02 and 03) and his wife, § 87(2)(b) (Board Review 04 and 05), stated that on December 15, 2022, at approximately 6:00 a.m., at § 87(2)(b) in Staten Island, they were awoken by loud banging on the front door of the apartment. § 87(2)(b) is a railroad apartment on the first floor of the building. The front door opens into a hallway. There is a door to § 87(2)(b) and § 87(2)(b)'s bedroom door off this hallway. One must walk through this front bedroom to get to § 87(2)(b)'s bedroom. There is a door in § 87(2)(b)'s bedroom that leads to the kitchen. There is no living room or common area.

§ 87(2)(b) heard someone yell, "Police, police! Get down!" The bedroom door was closed and locked at this time. The door was subsequently forced open. Once the door was broken open, § 87(2)(b) and § 87(2)(b) observed Sergeant Melendez standing in the doorway holding a battering ram. Sergeant Melendez yelled, "It's the police, don't move!" § 87(2)(b) stated that Sergeant Melendez pointed his firearm at him and his wife. § 87(2)(b) further stated that additional officers subsequently entered the bedroom, two of which also entered with their firearms pointed at § 87(2)(b) and § 87(2)(b). § 87(2)(b) was unable to provide a physical description of these two officers other than that they were male. He further stated that Sergeant Melendez and the two male officers kept their firearms pointed at § 87(2)(b) and § 87(2)(b) and holstered them after they were placed in handcuffs. § 87(2)(b) stated that Sergeant Melendez entered the bedroom first, followed by Detective Cardinale, Detective Browne, and three additional male officers. She did not report observing any of the officers enter with their guns drawn or pointed at her or anyone else inside the residence.

§ 87(2)(b) (Board Review 06 and 07) stated that on December 15, 2022, at approximately 6:00 a.m., at § 87(2)(b) in Staten Island, she was in the bathroom when she heard banging on the front door of the residence. She then heard someone on the other side of the front door say, "It's police! We have a search warrant, open the door!" § 87(2)(b) then observed officers jam something between the door frame and doorknob and "pop the lock" open. Three male officers subsequently entered the apartment. She did not observe any of the officers enter with their guns drawn or pointed.

Detective Browne (Board Review 16 and 17), Sergeant Melendez (Board Review 12 and 13), Detective Weiburg (Board Review 08 and 09), Detective Cardinale (Board Review 10 and 11), Detective Wittick (Board Review 18 and 19), Deputy Inspector Weisberg (Board Review 20 and 21) and Detective Vaccarino (Board Review 14 and 15) stated that on December 15, 2022, at approximately 6:00 a.m., they arrived at § 87(2)(b) in Staten Island to execute a search

warrant pursuant to a narcotics investigation into § 87(2)(b) Detective Browne was the lead investigator in the case and Sergeant Melendez was the Narcotics supervisor on scene. Deputy Inspector Weisberg was also present on scene to supervise the investigation. Detective Browne stated that the search warrant obtained for the residence had a “no knock” provision. § 87(2)(e)

Detective Browne stated that he was the first officer to enter the residence. Detective Browne entered the front bedroom with his firearm drawn. He did not observe any other officer draw or point their firearm at this time, or at any other point during the incident. Sergeant Melendez stated that he was a part of the initial entry group and took up the rear of the stack. Sergeant Melendez denied entering the residence with his firearm drawn or pointed at any civilians and did not see any other officers do so. Detective Weiburg remained outside to secure the front door. He remained on the front porch for the entirety of the search and did not recall entering the apartment at any point during the incident.

Detective Cardinale was assigned to secure the rear exit of the residence with Detective Michael Sigismondi. When Detective Cardinale arrived on scene, she and Detective Sigismondi assumed their post at the rear exit of the residence. The remainder of the officers entered through the front entrance. Detective Cardinale did not see the officers enter and therefore did not observe whether any officers entered the residence with their firearms drawn or pointed.

Detective Wittick stated that he drove himself and Deputy Inspector Weisberg to the incident location. The front door of the residence was forcibly breached and the entry team, which was comprised of approximately six officers, subsequently entered the residence. Detective Wittick was not able to identify the officers who were a part of the entry team. Detective Wittick did not observe any of the officers enter with their firearms drawn. Detective Wittick observed the entry from the front porch. Officers proceeded down the hallway and entered a room through a door on the left side of the hallway. Detective Wittick did not enter the residence. He did not recall whether Deputy Inspector Weisberg entered the residence at any point during the incident.

Deputy Inspector Weisberg stated that he was standing approximately 30 feet behind the entry team and was unable to see whether any of the officers entered with their firearms drawn. Deputy Inspector Weisberg further stated that officers are trained when executing a search warrant pursuant to a narcotics investigation to enter under the assumption that there may be firearms inside the location. For this reason, the first four officers to enter are instructed to do so with their firearms drawn. Deputy Inspector Weisberg waited outside while the entry team secured the location. Once the entry team determined that there were no weapons or any other threats to the officers’ safety inside the residence, Deputy Inspector Weisberg entered the location.

§ 87(2)(b) and § 87(2)(b) stated that they were both completely naked in bed when they were awoken by officers entering the residence. § 87(2)(b) stated that both he and § 87(2)(b) got out of bed upon hearing officers at the front door. § 87(2)(b) stated that only she got out of bed, while § 87(2)(b) remained in bed. She further stated that they both covered themselves with a sheet prior to officers entering the bedroom. § 87(2)(b) § 87(2)(b)s two pit bulls were loose in the hallway outside the bedroom behind a gate separating the hallway from the bedroom at the time that officers entered the apartment.

§ 87(2)(b) stated that Detective Browne attempted to pull the bedsheet away from him and said, “Let me see your hands,” to which § 87(2)(b) responded, “I’m trying to cover my dick.” § 87(2)(b) and § 87(2)(b) were naked while being placed in handcuffs. No attempts were made by Detective Browne or any other officers to shield § 87(2)(b) or § 87(2)(b)

§ 87(2)(b) from view, or afford them privacy, while they were naked and exposed to the officers in the bedroom. After § 87(2)(b) was placed in handcuffs, Sergeant Melendez said to her, “Get your fucking dogs before I punch you in your fucking face, bitch!” The dogs were just barking at this time and neither dog attempted to attack officers at any point during the incident. Detective Browne assisted § 87(2)(b) with putting on pants and a jacket. § 87(2)(b) was naked and exposed to Detective Cardinale and other male officers in the room for approximately six minutes before he was permitted to get dressed.

§ 87(2)(b) stated that upon entering the bedroom, Detective Cardinale went over to her side of the bed and Detective Browne went to § 87(2)(b)'s side of the bed. Detective Cardinale placed § 87(2)(b) in handcuffs while she was naked in front of several male officers. § 87(2)(b) was telling one of the male officers on scene where her dogs' leashes were, when Sergeant Melendez yelled, “Shut the fuck up! Get your fucking dogs, bitch, before I punch you in your face!” One of the dogs was approximately two feet away from Sergeant Melendez at the time the comment was made. The dog was barking, but he was not baring his teeth or demonstrating any behaviors that would indicate that he was going to attack Sergeant Melendez or any other officer. § 87(2)(b) informed the officer with whom she was speaking that the leashes were on the banister, at which point he retrieved the leashes and put them on both dogs without issue. § 87(2)(b) was covering herself with a sheet when Detective Cardinale ordered her to give her hands. § 87(2)(b) let go of the sheet to allow herself to be handcuffed, which caused her naked body to be exposed to Sergeant Melendez and the four to five male officers in the room. § 87(2)(b) and § 87(2)(b) stated that they were simultaneously handcuffed on their respective sides of the bed. Neither Detective Cardinale, Detective Browne, nor any other officer on scene, made an attempt to cover them, provide them with clothing, or move them to a more private area while they were naked and being placed in handcuffs. After approximately five minutes after being placed in handcuffs, Detective Cardinale and Detective Browne gave § 87(2)(b) and § 87(2)(b) clothing to put on. During this time, the remaining officers were conducting a search of the bedroom and the rest of the apartment.

§ 87(2)(b) stated that the dogs were in the hallway off the front door separated from each other by a gate. When § 87(2)(b) heard officers banging on the door, she entered the hallway and took one of the dogs into the bathroom. Three male officers subsequently entered the residence, one of which § 87(2)(b) described as a white male in his early forties, average build, slightly taller than 5'7", with salt and pepper hair. § 87(2)(b) dislocated her knee prior to the incident. The aforementioned officer noticed § 87(2)(b)'s leg was injured and ushered her into the kitchen to sit down. § 87(2)(b) was also in the kitchen at this time. The other two officers entered § 87(2)(b) and § 87(2)(b)'s bedroom. § 87(2)(b) could hear § 87(2)(b) and § 87(2)(b) telling officers that they were both completely naked and asked to be permitted to cover themselves up. An officer ordered them to put their hands up. § 87(2)(b) and § 87(2)(b) insisted that they should be permitted time to get dressed. § 87(2)(b) heard a male officer tell § 87(2)(b) and § 87(2)(b) not to touch their clothes. This exchange went on for approximately five minutes, during which time § 87(2)(b) heard her § 87(2)(b) and § 87(2)(b) request to get dressed upwards of ten times. § 87(2)(b) did not hear any officer on scene say to § 87(2)(b) “Get your fucking dogs before I punch you in your fucking face, bitch!”

Detective Browne stated that when he entered the front bedroom, he observed § 87(2)(b) and § 87(2)(b) in the bed covered by a blanket. § 87(2)(b) and § 87(2)(b) were ordered to show officers their hands. They complied with orders to show their hands and informed officers that they were naked under the covers. Detective Browne and the rest of the

entry team officers searched the bedroom for any firearms, or other weapons. § 87(2)(b) and § 87(2)(b) were permitted to remain in the bed under the covers while officers secured the residence. Both § 87(2)(b) and § 87(2)(b) were completely covered by the blanket during this time and neither of their private areas were exposed to officers. Once it was determined that the residence was secure and there were no threats to the officers' safety, Detective Browne and Detective Cardinale retrieved clothes for § 87(2)(b) and § 87(2)(b) respectively. § 87(2)(b) and § 87(2)(b) got dressed simultaneously inside the front bedroom with only Detective Browne and Detective Cardinale present. § 87(2)(b)'s private parts were exposed for less than one second when he initially got out of bed to get dressed. § 87(2)(b) was then placed in handcuffs. Detective Browne did not recall who handcuffed § 87(2)(b). At the same time that Detective Browne was assisting § 87(2)(b) Detective Cardinale assisted § 87(2)(b) in a similar manner by providing her with clothing to put on. Detective Browne's attention was focused on § 87(2)(b) while § 87(2)(b) was getting dressed. He further stated that he did not see § 87(2)(b)'s naked body and did not know whether her private areas were exposed to any other officers during this time.

Sergeant Melendez stated that he took up the rear as the initial entry group entered the front bedroom. He did not recall whether there were dogs inside the residence. Upon entering the front bedroom, he observed § 87(2)(b) and § 87(2)(b) inside. He did not recall their state of dress or whether they were naked or partially clothed at the time he and the other officers entered. § 87(2)(b) and § 87(2)(b) were placed in handcuffs and escorted to another room while officers conducted a search of the residence. Sergeant Melendez did not recall which officers placed them in handcuffs. Sergeant Melendez denied saying to § 87(2)(b) "Get your fucking dogs before I punch you in your fucking face, bitch!" and did not recall whether there were dogs inside the residence. He further denied using profanity or speaking discourteously to § 87(2)(b) or any other civilians on scene, and did not recall any other officer doing so.

Detective Cardinale stated that the rear door was closed and she was not able to hear what was going on inside. She further stated that she did not hear an officer inside say, "Get your fucking dogs bitch, before I punch you in your fucking face!", nor did she hear any officer speak discourteously or use profanity during the incident. A few minutes after the entry team entered the residence, Detective Cardinale received orders over the radio to come inside to search and clothe § 87(2)(b). She did not recall who gave her the order. Detective Cardinale subsequently entered the residence through the back door into the kitchen. She entered a bedroom where she observed § 87(2)(b) and § 87(2)(b) handcuffed inside with multiple officers standing around. § 87(2)(b) was completely naked. § 87(2)(b) was clothed with his private areas covered. Detective Cardinale did not recall what he was wearing. She did not recall an officer standing with § 87(2)(b) at this time and did not know who placed him in handcuffs. Immediately upon entering the bedroom, Detective Cardinale asked § 87(2)(b) to point to where her clothes were in the room. Detective Cardinale retrieved pants and a bathrobe, removed § 87(2)(b)'s handcuffs, and handed her the clothing. After § 87(2)(b) got dressed, Detective Cardinale handcuffed her and escorted her outside to the front stoop.

Detective Wittick stated that from his position on the front porch, he could hear dogs barking as well as a lot of yelling and commotion coming from inside the residence immediately after officers entered. He did not hear any officers inside say, "Get your fucking dogs, bitch, before I punch you in your fucking face," or anything to that effect, and denied making the statement himself. He further stated that he did not hear any officer on scene speak discourteously or use profanity at any point during the incident. A few minutes after officers entered the residence, one of the entry team

officers brought a pit bull out on leash and handed the dog off to Detective Wittick, who was the designated animal control and responsible for taking care of the dog while they search was underway. Detective Wittick walked the dog around the property so it could relieve itself and then returned to the porch with the dog where he remained for the remainder of the incident. Shortly after the dog was brought outside, Detective Cardinale escorted § 87(2)(b) outside in handcuffs. § 87(2)(b) was fully dressed. Detective Wittick did not recall what she was wearing specifically. He did not recall specifically how much time passed between the initial entry and the point Detective Cardinale brought § 87(2)(b) outside. Detective Carindale remained on the front porch guarding § 87(2)(b) for the remainder of the incident. § 87(2)(b) did not speak about what transpired inside the residence prior to being detained outside. Detective Wittick did not discuss what transpired inside the residence with Detective Cardinale.

Deputy Inspector Weisberg did not recall how much time passed between the initial entry and the point at which he entered the residence. He observed § 87(2)(b) and § 87(2)(b) handcuffed inside the bedroom. He did not recall their state of dress or whether they were naked or partially exposed at the time that he encountered them. There was no conversation between Deputy Inspector Weisberg and the supervising officers on scene regarding the entry or how § 87(2)(b) and § 87(2)(b) were detained. Deputy Inspector Weisberg did not recall who the officers were that were guarding § 87(2)(b) and § 87(2)(b). He further stated that he did not observe or interact with any other civilians inside the residence.

Detective Weiburg did not recall speaking with the other officers on scene about what transpired inside the residence. He was not aware of § 87(2)(b) or § 87(2)(b)'s state of dress when officers entered the residence, or whether they were naked or exposed to officers at any point. Detective Weiburg did not hear any civilians inside the residence speak about being naked or ask to put clothes on or cover themselves. He further stated that he did not hear any officers deny a civilian's request to get dressed or cover themselves.

Detective Vaccarino did not recall whether he entered the residence or what specific actions he took while on scene. He further stated that he did not recall the occupants or any specific interactions he or other officers may have had with individuals inside the residence. Detective Vaccarino did not recall encountering § 87(2)(b) or § 87(2)(b) naked in bed and did not recall observing any occupants in a state of undress with their breasts, buttocks, and/or genitals exposed to officers. Detective Vaccarino did not recall Detective Cardinale placing § 87(2)(b) in handcuffs and assisting her with getting dressed. He also did not recall placing § 87(2)(b) in handcuffs or assisting him with dressing, and did not recall observing another officer do so. Detective Vaccarino denied saying to § 87(2)(b) or any other occupant, "Get your fucking dogs, before I punch you in your fucking face, bitch!", and did not recall hearing any other officer make this statement or use profane or discourteous language at any point during the incident.

The investigation was unable to obtain a copy of the officers' search warrant. Details of the warrant, however, are attested to in several other police records. The DD5 for the investigation into § 87(2)(b) (Board Review 25) indicates that Detective Browne was the lead investigator in the case. On December 13, 2022, Detective Browne filed a request for a search warrant for both § 87(2)(b) and the first floor of § 87(2)(b) in Staten Island. Both of the requested search warrants were obtained on the date of request. The post-warrant data entry form (Board Review 26) indicates that the warrant was executed on December 15, 2022, at approximately 6:00 a.m., and lists Detective Browne as the requesting officer and Sergeant Melendez as the entry supervisor. It

further indicates that the search warrant had a “No Knock” provision; and there was one arrest made for contraband, i.e., two vials of crack cocaine.

NY CLS CPL § 690.50 (Board Review 27) states that officers executing a search warrant of a premises may enter without alerting occupants to their presence or purpose if the search warrant expressly authorizes entry without notice. Additionally, officers may use physical force against any occupant resisting the entry and search of the premises, barring the use of deadly physical force, as is necessary to execute the warrant. It further states that officers are permitted to use deadly physical force if they reasonably believe such force to be necessary to defend themselves or a third person from what they reasonably believe to be the use or imminent use of deadly physical force.

According to the precedent set in NYPD v. Pichardo, DAO-DCT #2015-15012 (Board Review 28), an officer is permitted to use profanity in “dynamic” situations over which they are attempting to gain control, and that the use of profanity in these instances is considered excusable and not a discourtesy. However, discourteous and profane statements made toward civilians when a situation is currently under control at the time the statement was made, are deemed to have “no legitimate purpose” other than to belittle the civilian(s) involved.

NYPD Administrative Guide 304-06 (Board Review 29) states that officers are prohibited from using discourteous or disrespectful remarks regarding a person’s gender.

NYPD Patrol Guide 221-01 (Board Review 30), force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances. If the force used is unreasonable under the circumstances, it will be deemed excessive and in violation of Department policy. When appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In situations in which this is not safe and/or appropriate, MOS will use only the reasonable force necessary to gain control or custody of a subject.

In determining whether the use of force is reasonable, members of the service should consider the following factors:

- The nature and severity of the circumstances;
- Actions taken by the subject;
- Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders.

NYPD Patrol Guide Procedure 200-02 (Board Review 31) states that officers pledge to value human life, respect the dignity of each individual and render their services with courtesy and civility.

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **within NYPD guidelines**.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations B – D** are closed as **unable to determine**.

§ 87(2)(g)

it is therefore recommended that **Allegations E and F** are closed as **unable to determine**.

Allegation (G) Abuse of Authority: Detective Richard Browne refused to show the search warrant to § 87(2)(b)

Allegation (H) Abuse of Authority: Detective Richard Browne refused to show the search warrant to § 87(2)(b)

Allegation (I) Abuse of Authority: Deputy Inspector Scott Weisberg refused to show the search warrant to § 87(2)(b)

§ 87(2)(b) (Board Review 02 and 03) asked Detective Weiburg to view the search warrant. Detective Weiburg took out a piece of paper but did not show it to § 87(2)(b) who was only able to see the blank side of the paper. When § 87(2)(b) asked to look at the document, Detective Weiburg acted like he did not hear him and walked away. During this time, § 87(2)(b) asked Detective Cardinale to see a copy of the search warrant, but it was not shown to her. § 87(2)(b) further stated that he was ultimately arrested and transported to the 120th Precinct stationhouse by Detective Browne. En route to the stationhouse, he requested to see a copy of the search warrant, to which Detective Browne responded that he did not have one.

§ 87(2)(b) (Board Review 04 and 05) stated that after she was handcuffed and permitted to get dressed, she asked Detective Browne to see a copy of the search warrant. Detective Browne held a piece of paper up with the blank side facing § 87(2)(b) and § 87(2)(b). When § 87(2)(b) asked to view the search warrant, Detective Browne folded the paper and put it in his vest without showing it to them. § 87(2)(b) stated that she was familiar with Detective Weiburg. She did not report asking Detective Weiburg to view a copy of the search warrant at any point during the incident, and did not interact with him at all while inside the residence.

§ 87(2)(b) (Board Review 06 and 07) stated that the officer whom she described as a white male in his early forties, average build, approximately 5'7", with salt and pepper hair, escorted her and § 87(2)(b) from the kitchen to § 87(2)(b)'s bedroom. The officer instructed them to sit on the couch and remained in § 87(2)(b)'s bedroom for the majority of the incident. § 87(2)(b) asked the officer to view a copy of the search warrant, to which he responded that § 87(2)(b) would be able to view the search warrant once the search was completed. § 87(2)(b) was never shown a copy of the warrant by the officer, or any other officer on scene.

Detective Weiburg (Board Review 08 and 09) did not recall entering the residence at any point during the incident, and denied that any of the civilian occupants made a request to him to see a copy of the search warrant. He further stated that Detective Browne had a copy of the search warrant, however, he did not hear any of the occupants ask him to see it. Detective Weiburg did not know whether any other officers on scene also had copy of the search warrant, but that typically, the executive officer and the supervising officer would have copies of the search warrant, in addition to the lead investigator.

Detective Browne (Board Review 16 and 17) stated that § 87(2)(b) and § 87(2)(b) asked him to see a copy of the search warrant, and that he showed them the search warrant by holding it out in front of them. He denied refusing to show a copy of the search warrant to § 87(2)(b) or any of the other occupants. Detective Browne did not observe § 87(2)(b) request to see a copy of the search warrant, nor did he observe any officer on scene refuse to show her or any other civilian the search warrant upon request.

Deputy Inspector Weisberg (Board Review 20 and 21) stated that he did not have a copy of the search warrant. He further stated that he did not recall encountering any civilian occupants inside the residence other than § 87(2)(b) and § 87(2)(b) and did not enter any other rooms inside the residence other than the one where § 87(2)(b) and § 87(2)(b) were detained in handcuffs. Deputy Inspector Weisberg did not speak or interact directly with any of the occupants, and denied refusing to show any civilians a copy of the search warrant upon request.

Detective Cardinale (Board Review 10 and 11) did not encounter any other civilians inside the residence other than § 87(2)(b) and § 87(2)(b). Neither § 87(2)(b) nor § 87(2)(b) made a request to Detective Cardinale to see a copy of the search warrant. Detective Cardinale did not hear § 87(2)(b) or § 87(2)(b) ask any other officer on scene to view the search warrant. Detective Cardinale did not know which of the officers on scene had a copy of the search warrant, but that typically, the arresting officer, whom she identified as Detective Browne, would have a had a copy of the search warrant. Detective Cardinale denied refusing to show § 87(2)(b) or § 87(2)(b) the search warrant, and did not observe any other officer do so.

Sergeant Melendez (Board Review 12 and 13) had a copy of the search warrant with him on scene. He did not know whether any other officers on scene had a copy of the search warrant. Sergeant Melendez did not recall § 87(2)(b) or any other civilians inside the residence requesting to see a copy of the search warrant.

Detective Vaccarino (Board Review 14 and 15) did not have a copy of the search warrant on scene and did not know which officers did. He further stated that typically the lead investigator, whom he identified as Detective Browne, or the supervisors on scene, whom he identified as Sergeant Melendez and Deputy Inspector Weisberg would have a copy of the search warrant. Detective

Vaccarino did not observe any officer on scene refuse to show the search warrant to one of the occupants upon request.

Detective Wittick (Board Review 18 and 19) did not know which officers had a copy of the search warrant. Detective Wittick did not observe § 87(2)(b) ask any of the officers to view a copy of the search warrant.

Deputy Inspector Weisberg's pedigree sheet (Board Review 32) indicates that he is a white male, § 87(2)(b) old at the time of the incident, § 87(2)(b) with greyish blonde hair.

§ 87(2)(g)

NY CLS CPL § 690.50 (Board Review 27) states that an officer executing a search warrant for the search of a premises must show the occupants of the location a copy of the search warrant upon request.

§ 87(2)(g)

It is therefore recommended that **Allegations G and H** are closed as **unable to determine**.

§ 87(2)(g)

It is therefore recommended that **Allegation I** is closed as **unable to determine**.

Allegation (J) Abuse of Authority: An officer did not process § 87(2)(b) s complaint regarding an officer.

§ 87(2)(b) (Board Review 02 and 03) stated that he was transported to the 120th Precinct stationhouse. He was arraigned and released at approximately 5:00 p.m. § 87(2)(b) informed him upon his release that officers had mistaken her cellphone, a white iPhone 11 with a black Otterbox case, for his and took it from the apartment.

§ 87(2)(b) (Board Review 04 and 05) stated that she was escorted out of the

residence after § 87(2)(b) by Detective Cardinale. She was taken to the porch where Detective Cardinale remained with her for the rest of the incident. The officers remained inside for about twenty minutes. Detective Cardinale subsequently removed § 87(2)(b)'s handcuffs, after which point, she and the remaining officers left the scene. Following the incident, § 87(2)(b) realized her white iPhone 11 with a black Otterbox case on it was missing from inside the residence. She called the 120th Precinct stationhouse following the incident and spoke to Detective Browne. She informed Detective Browne that officers took her cell phone from the residence by mistake and asked how she could retrieve it. Detective Browne informed her that once § 87(2)(b) was released, she could go to the stationhouse with him to retrieve his vouchered property.

§ 87(2)(b) and § 87(2)(b) stated that they went to the 120th Precinct stationhouse following § 87(2)(b)'s release. They spoke to a female in plainclothes seated at the desk in the civilian waiting area and explained the situation regarding § 87(2)(b)'s phone. Shortly after this conversation, an unknown officer came down from the building's second floor and returned § 87(2)(b)'s cell phone to her in a plastic bag. § 87(2)(b) stated that the officer that returned her phone was male. She did not provide any further description. § 87(2)(b) did not provide a physical description of the officer. § 87(2)(b) stated that after her cell phone was returned, she told the officer who gave it to her that she wanted to file a complaint. The officer gave her a phone number and instructed her to call the number to file a complaint. He did not offer to take her complaint at the stationhouse. § 87(2)(b) and § 87(2)(b) subsequently left the stationhouse and had no further interaction with officers. § 87(2)(b) did not mention § 87(2)(b) requesting to file a complaint at the stationhouse.

Sergeant Kokoruda (Board Review 22 and 23) stated that on December 15, 2022, at approximately 5:30 p.m., he was assigned to cover the 120th Precinct Sergeant's Desk. He did not recall interacting with § 87(2)(b) or § 87(2)(b) at any point on the date of the incident. As the desk officer, Sergeant Kokoruda stated that he typically does not interact with civilians who come to the stationhouse to retrieve vouchered property. Typically, officers who interface with civilians will inform him that property was returned, which he will then document in the command log. Sergeant Kokoruda did not recall an officer returning a cell phone to § 87(2)(b) or § 87(2)(b). Sergeant Kokoruda stated that the property room is on the first floor of the stationhouse and the detective bureau is upstairs. He did not know if there was an officer assigned as a property clerk on the date of the incident. Sergeant Kokoruda did not recall § 87(2)(b) or § 87(2)(b) requesting to file a complaint against officers at the stationhouse.

Detective Vaccarino (Board Review 14 and 15) did not recall returning a cell phone or any other vouchered items to § 87(2)(b) or § 87(2)(b) or interacting with them at all on the date of the incident.

Detective Browne (Board Review 16 and 17) stated that he did not return the cell phone seized from the residence to § 87(2)(b) on the date of the incident or at any subsequent point.

The 120th Precinct Tour 3 Roll Call (Board Review 33) does not list any officers as being assigned the role of Property Clerk.

The 120th Precinct Tour 3 Command Log from the date of the incident (Board Review 33) indicates that Sgt. Kokoruda began covering the desk at 4:20 p.m. A subsequent entry made at 5:10 p.m. documents the return of property pursuant to invoice# § 87(2)(b) to the owner corresponding to

NYSID# § 87(2)(b) which corresponds to § 87(2)(b) Sgt. Kokoruda confirmed that he made the aforementioned entries.

The property vouchers corresponding to § 87(2)(b)'s arrest (Board Review 34) list Detective Vaccarino as the invoicing officer and Detective Browne as the arresting officer. Invoice No. § 87(2)(b) and § 87(2)(b) indicate that two vials of crack cocaine and a pawn broker receipt were vouchered as arrest evidence. No other property vouchers corresponding to this incident were received by the investigation. Invoice No. § 87(2)(b) indicates that a black iPhone and red string from clothing were vouchered for safekeeping pursuant to § 87(2)(b)'s arrest and were returned on the date of the incident, December 15, 2022.

NYPD Patrol Guide 207-31 (Board Review 35) states that upon receipt of a complaint in person from civilian alleging misconduct by a uniformed member of service, the officer receiving the complaint must process the complaint as follows:

- Interview complainant
- Provide complainant copy of Civilian Complaint Report to be prepared in complainant's own handwriting and assist the complainant with completing the form if needed

It further states that if a complainant does not want to immediately file complaint at police facility, the receiving officer must take the following actions:

- Provide the complainant with a copy of the Civilian Complaint Report
- Advise complainant that the complaint may be filed in person, over the phone, or by mail at any police facility
- Provide the complainant with the CCRB Intake Unit's phone number

When a member of service receives a request for a Civilian Complaint Report they are required to notify the desk officer. The desk officer is then required to make an entry in the Command Log including the name of the complainant and physical description.

§ 87(2)(g)

Therefore, it is recommended that **Allegation J** is closed as **officer unidentified**.

Allegations Not Pleaded

- § 87(2)(g)

§ 87(2)(g) .

- § 87(2)(g) .
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Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 36).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 37).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 38).
- § 87(2)(g) .
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- Detective Browne has been a member of service for 12 years and has been a subject in 11 CCRB complaints and 36 allegations, of which four were substantiated.:
 - 201504300 involved a substantiated allegation of abuse of authority against Detective Browne. The Board did not recommended discipline and the NYPD did not impose discipline.
 - 201702888 involved substantiated allegations of abuse of authority against Detective Browne. The Board did not recommend discipline and the NYPD imposed the forfeiture of four vacation days. § 87(2)(g) .
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- Sergeant Melendez has been a member of service for 19 years and has been a subject in three CCRB complaints and seven allegations, of which one was substantiated.:
 - 202107413 involved a substantiated allegation of abuse of authority against Sergeant Melendez. The Board recommended formalized training and the NYPD imposed formalized training.
- Deputy Inspector Weisberg has been a member of service for 29 years and has been a subject in one CCRB complaint and one allegation, which was not substantiated. § 87(2)(g) .
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- Sergeant Kokoruda has been a member of service for 16 years and has been a subject in two CCRB complaints and three allegations, none of which were substantiated. § 87(2)(g) .
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Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming that officers unlawfully entered and searched his residence and unlawfully arrested him for possession of drugs, causing personal, emotional, and physical injuries and is seeking \$1,000,000.00 as redress (Board Review 39). There is no 50H hearing scheduled.

- [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
- § 87(2)(g)
- [REDACTED]

Squad No.: 15

Investigator:	Julia Vittore	Inv. Julia Vittore	03/18/2024
	Signature	Print Title & Name	Date

Squad Leader:	Owen Godshall	SI Owen Godshall	03/18/2024
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date